Name of the Case : T.M.A. Pai Foundation vs. State of Karnataka

Year of Judgement : 2002

Popular Name : —

Related Topic/Issue : Rights of minority educational institutions

Related Article/Schedule : 29 & 30

**Supreme Court Judgement:** It laid down the following propositions with respect to the rights of and the permissible restrictions upon minority educational institutions (both aided and unaided): (a) Linguistic and religious minorities are covered by the expression "minority" under Article 30. Since reorganization of the states in India has been on linguistic lines, therefore, for the purpose of determining the minority, the unit will be the State and not the whole of India. Thus, religious and linguistic minorities, who have been put at par in Article 30, have to be considered state-wise; (b) Article 30(1) gives religious and linguistic minorities the right to establish and administer educational institutions of their choice. The use of the words "of their choice" indicates that even professional educational institutions would be covered by Article 30; (c) Admission of students to unaided minority educational institutions, cannot be regulated by the State government or the university (except for providing the qualifications and minimum conditions of eligibility in the interest of academic standards); (d) The right to administer, not being an absolute one, there could be regulatory measures for ensuring educational standards and maintaining excellence thereof; (e) The moment aid is received by a minority educational institution, it would be governed by Article 29(2) and would then not be able to refuse admission on grounds of religion, race, caste, language or any of them. In other words, it cannot then give preference to students of its own community; (f) In the case of aided professional institutions, it can also be stipulated that passing of common entrance test held by the state agency is necessary to seek admission; and (g) A minority institution may have its own procedure and method of admission as well as selection of students, but such procedure must be fair and transparent and selection of students in professional and higher educational colleges should be on the basis of merit.

**Impact of the Judgement:** In order to overcome the effect of this judgement and also the judgement delivered in the *Inamdar* case[18] (2005), the 93rd Amendment Act (2005) was enacted. This amendment inserted a new Clause (5) in Article 15. This clause empowered the state to make any special provision for the advancement of any socially and educationally backward classes of citizens or for the scheduled castes or the scheduled tribes regarding their admission to educational institutions. This provision also includes private educational institutions, whether aided or unaided by the state, except the minority educational institutions under Article 30(1).

**Naveen Jindal Case (2004)**

Name of the Case : Union of India vs. Naveen Jindal

Year of Judgement : 2004

Popular Name : —